

Supreme Court's specific directive that cases in foreign countries, such as Switzerland, be revived and pursued aggressively. The President would not have the benefit, in those jurisdictions, of any immunity granted under the Pakistani Constitution. It is also widely believed that the cases against Zardari in Swiss courts were among the strongest in terms of evidence and that Zardari only survived being proceeded against by using legal delaying tactics, including claims by his

limited to impeachment and no one believes a military coup is currently possible, there may be other threats to Zardari's position than simple moral pressures. With the revival of cases, he now faces the prospect of his election as President being challenged. According to legal experts, a writ of *quo warranto* could be entered in the courts, arguing that Zardari did not fulfill the conditions laid down in the Constitution to be elected to his post in the first place. "In fact," says constitutional expert

of conspiracies in Islamabad. While assessments differ about how effective Zardari would be in playing such a risky game, especially given his own controversial past, the prospect of provincial discord is unsettling for the country's politics.

Some observers feel Zardari may even survive as long as he gives up his powers and accepts being a simple figurehead. They feel the country's establishment which is not comfortable with Zardari calling the shots may be willing to accept this compromise. Zardari recently voluntarily gave up control over the Nuclear Command Authority, which oversees the country's nukes, and a parliamentary committee is also working on an amendment to strip the presidency off the powers arrogated to it by General Musharraf and transfer them back to the Prime Minister, including the power to appoint the army chief and the power to dissolve the Parliament. The presidential camp has always insisted that Zardari is willing to allow this but he may have little choice in the matter now. So far, most analysts believe the fallout of the Supreme Court decision will seriously damage only Zardari and his cronies and, rather than damaging the PPP Government, may actually work to the benefit of Prime Minister Yousaf Raza Gilani as well as strengthen democracy in the long term. How true this assessment is depends much on Zardari not dragging the rest of his party down with him.

It was less than two years ago that Zardari was being lauded as the saviour of Pakistan—for his conciliatory statesmanship in the wake of his wife's brutal murder—and even earning grudging acknowledgments from his detractors. It all seems a long time ago. Bunkered in the presidency, he is now most often characterised as being aloof from public issues, scared to go out in public and increasingly erratic and vengeful. Whether he survives as a figurehead president or is forced out of office under a blaze of corruption charges, his political epitaph is already being written. ■



THE VERDICT WILL RESULT IN ZARDARI'S ELECTION AS PRESIDENT BEING CHALLENGED. EVEN IF HE SURVIVES, IT WILL BE AS A FIGUREHEAD.

lawyers of his inability to appear before the courts because of "mental instability". In fact, in one of the cases, both Zardari and Bhutto had been convicted in absentia to six months' imprisonment, a decision that was only suspended on appeal. The Pakistan Government only stopped pursuing these cases—under which some \$60 million had been frozen in Swiss accounts—after the promulgation of the NRO.

While the options of legally removing a sitting head of state may be

Mirza Mahmood, "it is almost certain that such a plea will be made." Those close to Zardari indicate that he intends to fight. "He's not going to go voluntarily," says a source within the PPP hierarchy. "He has no other choice. If he steps down, he will lose even the fig leaf of Presidential immunity." There is also concern that if pushed to the wall, he may bank on playing the 'Sindh card', appealing to the emotions of PPP activists in his home province, who believe their leaders have always been the target